

Track 1 — Chapter Build Pass

MPEP Chapter 2500 · Maintenance Fees

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Keeping a Utility Patent Alive

A short chapter, but a reliable source of exam questions built around three specific numbers: 3.5, 7.5, and 11.5 years, plus the 6-month grace period. This was a gap in the original Track 1 build — added here to round out coverage.

Rule 1: Maintenance Fee Windows (§2506)

PLAIN ENGLISH

Utility patents require three maintenance fees to stay in force, due at **3.5, 7.5, and 11.5 years** from the grant date. Each fee can be paid without surcharge during a 6-month window ending at that anniversary (e.g., the first fee window runs from 3 to 3.5 years). Design and plant patents never require maintenance fees.

EXAMPLE

A utility patent issues January 1, 2020. The first maintenance fee window opens January 1, 2023 (3 years) and closes July 1, 2023 (3.5 years) without any surcharge required.

QUIZ

Which patent types require maintenance fees?

- (A) Utility patents only
- (B) Design patents only
- (C) Plant patents only
- (D) All patent types equally

Rule 2: The 6-Month Grace Period (§2506)

PLAIN ENGLISH

If a maintenance fee isn't paid by its due date (e.g., the 3.5-year anniversary), the patent owner gets a **6-month grace period** after that date to pay, along with a required **surcharge**. If payment (with surcharge) isn't made by the end of the grace period, the patent expires at the end of that grace period for failure to pay.

EXAMPLE

A patent owner misses the 3.5-year maintenance fee due date. They have until the 4-year mark (the 3.5-year date plus a 6-month grace period) to pay the fee plus a surcharge before the patent expires.

QUIZ

If a maintenance fee due date is missed, what is available before the patent expires?

- (A) Nothing — the patent expires immediately
- (B) A 6-month grace period, with a required surcharge
- (C) A 12-month grace period with no surcharge
- (D) An automatic extension with no fee

Rule 3: Reviving an Expired Patent for Non-Payment (§2590s)

PLAIN ENGLISH

A patent that expires for failure to pay a maintenance fee (even after the grace period) can be revived via petition showing the delay in payment was **unintentional**, along with the overdue maintenance fee, the surcharge, and the petition fee. There's no deadline on filing this type of petition, though the longer the delay, the more scrutiny the unintentional-delay showing may receive.

EXAMPLE

A small business's patent expires after they miss both the maintenance fee due date and the 6-month grace period due to an internal administrative oversight. They can file a petition to revive based on unintentional delay, along with all required fees, to bring the patent back into force.

QUIZ

What standard is used to revive a patent expired for non-payment of a maintenance fee?

- (A) Unavoidable delay only, with no exceptions
- (B) Unintentional delay
- (C) No revival is possible under any circumstances
- (D) Only if the USPTO caused the delay

Rule 4: Intervening Rights During Lapse (§2593)

PLAIN ENGLISH

If a patent lapses (expires) for non-payment and is later revived, parties who began using, making, or selling the patented invention in good faith during the period the patent was expired may have **intervening rights** protecting that specific activity — similar in concept to intervening rights in reissue and reexamination.

EXAMPLE

During the several months a patent was expired (before being revived), a competitor began manufacturing a product covered by the patent, believing it was in the public domain. Once the patent is revived, that competitor may retain intervening rights to continue that specific activity.

QUIZ

A competitor begins manufacturing a patented product in good faith while the patent is lapsed for non-payment. The patent is later revived. What might protect the competitor's activity?

- (A) Nothing — revival erases all effects of the lapse
- (B) Intervening rights
- (C) A compulsory license automatically granted
- (D) A terminal disclaimer

Rule 5: Fee Calculation & Small/Micro Entity Discounts (§2520s, cross-ref §509)

PLAIN ENGLISH

Maintenance fees, like most USPTO fees, are reduced for qualifying **small entities** and further reduced for qualifying **micro entities** — the same entity-status framework covered in the Chapter 600 PDF applies here, including the continuing duty to update status if eligibility changes before a fee is paid at the wrong (too-low) rate.

EXAMPLE

A qualifying micro entity pays a significantly reduced maintenance fee at each of the three windows — but must reassess and update their status before each payment if their eligibility may have changed.

QUIZ

Does entity status (small/micro entity) affect maintenance fee amounts?

- (A) No, maintenance fees are a fixed amount for everyone
 - (B) Yes — qualifying small and micro entities pay reduced maintenance fees
 - (C) Only the first maintenance fee is discounted
 - (D) Entity status only affects filing fees, not maintenance fees
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A utility patent issues. At what points from grant are maintenance fees due?

- (A) 1, 5, and 10 years
- (B) 3.5, 7.5, and 11.5 years
- (C) 5, 10, and 15 years
- (D) Every year

2. Does a design patent ever require a maintenance fee payment?

- (A) Yes, the same schedule as utility patents
- (B) No — design patents never require maintenance fees
- (C) Yes, but only one payment at 7.5 years
- (D) Only for plant-related designs

3. A maintenance fee due date is missed. What is the immediate next step available to the patent owner?

- (A) The patent expires immediately with no options
- (B) Pay within the 6-month grace period, plus a surcharge
- (C) File a reissue application instead
- (D) Request an extension of time, like a standard Office action deadline

4. If the grace period also passes without payment, what standard applies to revive the expired patent?

- (A) Unavoidable delay only
- (B) Unintentional delay
- (C) No revival is possible
- (D) Only clerical error correction applies

5. True or False: A party who began using a patented invention in good faith while the patent was lapsed for non-payment has no protection once the patent is later revived.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- Maintenance fees apply to **utility patents only** — never design or plant patents.
- Due at **3.5, 7.5, and 11.5 years** from grant, each with a 6-month payment window.
- Missed due date → **6-month grace period + surcharge**; miss that too → patent expires.
- Expired patent can be revived via petition showing **unintentional delay**, plus fees.
- **Intervening rights** can protect good-faith activity undertaken during the lapse period.
- Small/micro entity discounts apply to maintenance fees just like other USPTO fees.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Maintenance Fee Windows (§2506)

Which patent types require maintenance fees?

Answer: A

Only utility patents require maintenance fees; design and plant patents are exempt entirely — a frequently tested distinction.

Rule 2: The 6-Month Grace Period (§2506)

If a maintenance fee due date is missed, what is available before the patent expires?

Answer: B

The 6-month grace period with surcharge is the standard remedy for a missed maintenance fee due date — miss that too, and the patent expires for non-payment.

Rule 3: Reviving an Expired Patent for Non-Payment (§2590s)

What standard is used to revive a patent expired for non-payment of a maintenance fee?

Answer: B

Like most modern USPTO revival petitions, unintentional delay is the standard used to revive a patent expired for non-payment of maintenance fees.

Rule 4: Intervening Rights During Lapse (§2593)

A competitor begins manufacturing a patented product in good faith while the patent is lapsed for non-payment. The patent is later revived. What might protect the competitor's activity?

Answer: B

Intervening rights are the doctrine that protects good-faith activity undertaken during a period when the patent was not in force, even after revival restores the patent going forward.

Rule 5: Fee Calculation & Small/Micro Entity Discounts (§2520s, cross-ref §509)

Does entity status (small/micro entity) affect maintenance fee amounts?

Answer: B

Entity status discounts apply across USPTO fees generally, including all three maintenance fee payments, not just filing-related fees.

Chapter Close-Out Quiz

1. (B)

3.5, 7.5, and 11.5 years from grant are the three maintenance fee due dates for utility patents.

2. (B)

Design (and plant) patents never require maintenance fees — only utility patents do.

3. (B)

The 6-month grace period, with a required surcharge, is the standard remedy for a missed maintenance fee due date.

4. (B)

Unintentional delay is the modern standard for reviving a patent that fully expired for non-payment, even after the grace period lapsed.

5. (B) False

Intervening rights can protect good-faith activity undertaken during the lapse period, even after the patent is later revived.